

2023

MBA

4th Semester Examination

LABOUR LAW-II

PAPER : MBA-HR-401/402

Full Marks : 80

Time : 3 hours

The figures in the right-hand margin indicate marks.

*Candidates are required to give their answers
in their own words as far as practicable.*

Illustrate the answers wherever necessary.

Answer from **both** the Groups as directed.

GROUP—A

Answer any **eight** questions from the following :

5×8=40

1. Explain the term manufacturing process as per
Factories Act, 1948. 5

2. Discuss the significant role of ILO in promoting labour rights and social justice in India. 5
3. What are the key challenges faced by employers in complying with the provisions of the Factories Act, 1948? 5
4. Write the provisions related to the working hour of adults as per Factories Act, 1948. 5
5. State the objectives of Employee's State Insurance Act, 1948. 5
6. Discuss the composition of members of the Employee's State Insurance Corporation under the ESI Act, 1948. 5
7. Explain the concept of 'continuous service' under the Payment of Gratuity Act, 1972. 5
8. If an employee has worked for 8 years and 11 months at a company with a monthly salary of ₹55,000 and he die due to an accident, what is the total gratuity amount that his legal heirs are eligible to receive under the Gratuity Act? 5

(3)

9. (a) An employee aged 55 with a monthly wage of ₹45,000 suffers a total permanent disablement due to an accident at work. Calculate the compensation amount he is eligible to receive under the Workmen's Compensation Act, 1923 [relevant factor (i.e., 135.56)]
- (b) A worker aged 45, meets with an accident and dies while at work (i.e., in the course of employment). At the time, he drew a monthly wage of ₹35,000. As per Schedule IV of the Act the relevant factor applicable to his case would be ₹124.7. Calculate the amount of compensation payable to his dependents. 5
10. Explain the term 'Dependent' as per Workmen's Compensation Act, 1923. 5
11. State the penalties (Section 9) for non-compliance with the Payment of Gratuity Act, 1972. 5
12. What do you mean by nomination (Section 6) as per the Payment of Gratuity Act, 1972? 5

(4)
GROUP—B

Answer *any four* questions from the following :

10×4=40

- 13.** To what extent has the Factories Act, 1948 been effective in protecting the health and safety of workers employed in factories in India? 10
- 14.** Explain the provisions of the Employee's State Insurance Act, 1948 in providing social security and health benefits to workers employed in the organized sector in India. 10
- 15.** What are the key objectives of the Workmen's Compensation Act, 1923? How does this Act provide compensation to workers who suffer from work-related injuries or illnesses? 4+6=10
- 16.** What are the key provisions of the Maternity Benefit Act, 1961 and how do these provisions support the health and well-being of woman employee in India? 5+5=10
- 17.** State the objectives of the Trade Union Act, 1926 and how has this Act influenced the development of Trade Unions in India. 4+6=10
- 18.** Discuss the provisions of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 in retirement planning for employees. 10

